

Consultation with Workers

Document no: 1MC05-ALJ-HS-PRO-C001-000013

Revision	Author	Reviewed by	Approved by	Date approved	Reason for revision
Rev01	Peter Day	Clement Chasset	Neil Hancox	24/04/2018	First Issue
Rev02	Peter Day	Clement Chasset	Neil Hancox	18/10/2018	Internal Update

Security classification: OFFICIAL

Contents

1	Purpose	2
2	Scope	2
3	References	2
4	Definitions	2
5	Consultation/Responsibilities	3
5.1	Responsibilities	3
5.2	Matters Requiring Consultation	3
5.3	Methods of Consultation	4
5.4	Guidance on Consultation Levels	5
5.5	The Consultation Process	9
5.6	Specific Legal Requirements	9
6	Documentation	10
7	Appendices	11
7.1	Appendix 1: Black Hat Briefing Agenda	11
7.2	Appendix 2: Black Hat Guide	12
7.3	Appendix 3: Daily Activity Briefing Agenda	13
7.4	Appendix 4: Record of Daily Activity Briefing	15
7.5	Appendix 5: Point of Work Risk Assessment (POWRA) Guidance	16
7.6	Appendix 6: Health & Safety Consultation Poster	18

1 Purpose

To provide guidance in consulting with all workers, (including sub-contractor employees, self-employed and agency personnel) on matters relating to their health and safety at work, the information they receive and how health and safety is being managed on site and the responsibilities individuals have for their own health and safety.

2 Scope

This procedure applies to all ALIGN undertakings relating to Sector C1 of the HS2 programme.

This procedure covers the following main means of consultation:

- Consultation with employees - Legal undertaking
- Black Hat/Supervisors meetings
- Daily Activity Briefings
- Point of Work Risk Assessments
- Site Inductions
- Safety at Heart Workshop
- Tool Box Talks

The information contained within this procedure can also be used as guidance for checking that sub-contractors/supply chain carrying out such activities are compliant.

3 References

- The Health and Safety (Consultation with Employees) Regulations 1996
- The Management of Health and Safety at Work Regulations (Management Regulations) 1999
- The Safety Representatives and Safety Committee Regulations 1977
- The Equality Act 2010

4 Definitions

The term 'Employee' means an individual who works under a contract of employment, including agency staff/personnel.

Note: Workers regarded as self-employed, for the assessment of income tax, may be classed as employees if they work under the direct control of the company and/or are issued with equipment.

The term 'Consultation' means the process involved in providing information so that advice and views can be sought. Consultation requires the provision of adequate information and appropriate action when advice and views have been received. Consultation or engagement must be two-way, i.e. top down, (the employer, principal contractor or principal designer) and bottom up (the workers).

'A person has a disability if they have a physical or mental impairment, and the impairment has a substantial and long-term adverse effect on their ability to carry out normal day-to-day activities'.

5 Consultation/Responsibilities

5.1 Responsibilities

5.1.1 The Project Director is responsible for ensuring that:

- The Consultation process is established, operated and recorded.
- The workforce are involved in the consultation process.

5.1.2 Other Personnel

In order to fulfil their responsibilities, the Project Director may appoint other personnel to assist them. These appointed persons will be responsible to the Project Director for the implementation of section 5.1.1 above as applicable to their appointment.

5.2 Matters Requiring Consultation

Employers have a duty to consult with their employees who are not currently represented by safety representatives under the Safety Representatives and Safety Committees Regulations 1977 that is by Trade Union safety representatives. Where this is the case, employers are required to consult their employees in good time on matters which relate to their health and safety under Regulation 3 of the Health and Safety (Consultation with Employees) Regulations 1996, in particular:

- The introduction of measures which could substantially affect their health and safety.
- Arrangements for appointing competent persons to assist the company in meeting its statutory obligations and for ensuring co-operation between these persons.

- Health and safety information required by law.
- The planning and organisation of health and safety training required by law.
- The health and safety consequences of the planning and introduction of new technologies into the workplace.

In addition, employees with a disability must not be discriminated against in the workplace because of their disability, and therefore 'reasonable adjustments' within the working environment to ensure that discrimination does not occur may be required.

Some disabilities are not immediately obvious to other people and some may be reluctant to disclose their disability for a variety of reasons. Where employees do raise the issue of their disability, the consultation with them must be approached with total confidentiality and a high degree of sensitivity.

Examples of non-obvious disabilities may include:

- Visual impairment
- Hearing impairment
- Speech impairment
- Lack of mobility
- Having learning difficulties or suffering memory loss
- Having a severe disfigurement

5.3 Methods of Consultation

These methods of consultation are about ensuring that everyone on site is consulted and given **information** and **engaged** on matters relating to health and safety by fostering a workplace culture of respect and trust thereby ensuring that our management also have an understanding of any health and safety concerns that are raised.

The following methods of consultation are available for our sites to use:

At Project Level

1. Workforce Consultation Meetings
2. Inductions (these are carried out for all employees before commencing work on our sites)

At Work Gang Level

1. Toolbox Talks/Safety Stand downs
2. Method Statement Briefings/Daily Activity Briefings/Point of Work Risk Assessments

At an Individual Level

1. Directly with each employee
2. Open door policy

These consultation mechanisms will be made known to all workers on site during induction sessions, via notice boards etc. and details will be included in the construction phase health and safety plan. The selected mechanisms will be updated as necessary as the project develops using the Health and Safety Consultation Poster.

5.4 Guidance on Consultation Levels

5.4.1 Project Level

Workforce Consultation Meetings

These meetings are an extremely flexible method of consultation. Meetings should be arranged between subcontractors, as open meetings on site or to discuss particular aspects of the project or any health and safety co-ordination issues with other contractors. The meeting can be a short informal exchange of information or a more formal regular pre-arranged meeting. An atmosphere should be created where anyone can raise health and safety issues and feel confident that they will be openly discussed and any concerns addressed in the appropriate manner.

As a legal requirement, these meetings will have a consistent format that enables all attendees to have an opportunity to raise any issues if required, and will have a feedback system that ensures that issues raised are dealt with, and the information is fed back to the workforce.

Any meetings between subcontractors and workers, prior to work commencing, ensures that all parties are aware of what will happen and provides an opportunity to ask questions and discuss any areas of overlap in advance of the work taking place.

Induction

Induction sessions on projects are often the first point of contact between the management team and workers on site. This is where information is provided on the project, the activities currently on site, site rules, site information and specific health and safety hazards particular to the project, along with details of the control measures being implemented to protect everyone

This two-way induction process allows the workforce to contribute their views on health and safety methods will be used as a method of consultation.

Induction must not be the only 'Project Level' method of consultation selected.

5.4.2 Work Gang Level

Toolbox Talks/Safety Stand Downs

Toolbox talks/safety stand downs are an extremely useful means of consultation particularly as they usually relate to a particular topic or activity and are designed to focus on specific health and safety issues. To be considered as a method of consultation toolbox talks/safety stand downs must invite worker participation and take account of feedback from workers. If subcontractors/trade contractors carry out their own toolbox talks they should be monitored to ensure the content is appropriate and to ensure that consultation does take place.

Particularly useful for sub-contractors as toolbox talks have a more informal atmosphere giving an opportunity for all involved to make their views known. It can be carried out by a member of the site management team, visiting health and safety advisor, sub-contractor management or site supervisors.

Through One or More Representatives

Although the Health and Safety (Consultation with Employees) Regulation 1996 utilize the employer/employee relationship, it may be appropriate to have an elected or volunteer representative from the workforce to represent all workers on site on matters of health and safety and how health and safety is being managed on site.

For this method of consultation, a suitable election procedure should be established. It should be made clear which group of workers the representative represents and the representative should be made aware of their functions under the Health and Safety (Consultation with Employees) Regulations 1996 and provided with the necessary facilities to perform his/her functions.

You may also find that workers are willing to volunteer for the role of representative. In this situation if your workers are content to be represented by the volunteer you may use this route to consult.

When using this method of consultation not all workers may wish to be represented by the elected or volunteer representative. A suitable method of consultation should be introduced to ensure these workers are properly consulted. You can still choose to consult workers directly on particular issues.

Black Hat/Supervisors Meetings

Daily Black Hat/Supervisors Meetings will be held upon the project. Such briefings are an extremely valuable tool in ensuring Black Hats/Supervisors putting the workforce to work are made aware of current and on-going risks associated with the works they are appointed to undertake, logistical constraints, hence enabling works under their direction to be completed in a safe manner. Consultation with the workers must be held in good time and not just at the last minute. Consultation during briefings allows Black Hats/Supervisors to raise any concerns, contribute their previous experiences, and identify areas and workplace risks that are not appropriate on that particular site, and suggest improved methods of working. The controls being suggested must be practical. By engaging Black Hats/Supervisors on health and safety issues, their involvement will help us create a healthier and safer work environment and drive a positive safety culture across the project. See further details in the ALIGN Black Hat Guide (Appendix 2) and ALIGN Black Hat Briefing Agenda (Appendix 2).

Method Statement Briefings/Daily Activity Briefings/Point of Work Risk Assessment

Method Statement Briefings/Daily Activity Briefings/Point of Work Risk Assessments relate to a specific activity on a particular project at a particular time and should be specific to the workers who will follow the method of working, they should not be a tick-box exercise and therefore package managers must attend such briefings on a regular basis to verify that the correct messages are being imparted to the workforce. They must satisfy themselves that the briefings are to an acceptable standard.

The briefings must:

- Be task and time specific
- Cover foreseeable risks arising from their work and any possible additional risks associated with other site activities in progress, including any health risks
- Cover the proposals to manage and/or control these risks
- The best ways of providing information and training

Such Briefings/DAB's/POWRA are an extremely valuable tool in ensuring operatives at the workplace are made aware of current and on-going risks associated with the works they are appointed to undertake, and a valuable means of consultation enabling those who are to carry out the work to give their views on the proposed method of working. Consultation with the workers must be held in good time and not just at the last minute. Consultation during briefings allows workers to raise any concerns, contribute their previous experiences, and identify areas and workplace risks that are not appropriate on that particular site and suggest improved methods of working. The controls being suggested must be practical. Also, that the workers have the necessary skills, training and other capabilities to work safely and healthily.

By engaging with the workers on health and safety issues, their involvement will help us create a healthier and safer work environment.

To be considered as a method of consultation, method statement/daily activity briefings/POWRA must invite and take account of worker contributions before any decisions are made on health and safety. If subcontractors/trade contractors carry out their own Method Statement Briefings/Daily Activity Briefings/POWRA they should be monitored to ensure the content is appropriate and to ensure that consultation does take place such collaborations will help us manage health and safety in a practical way.

These are particularly useful for sub-contractors as method statement/daily activity briefings/POWRA are very specific and can use workers experiences and knowledge to improve methods of working. This should be carried out by someone involved in the project who understands the activity involved and is supervising the work.

See guidance contained within ALIGN Daily Activity Briefing to all Workers, ALIGN DAB example and ALIGN Point of Work Risk Assessment Guidance.

5.4.3 Individual level

Directly With Each Employee

On many occasions speaking to each employee about a change in circumstances or a proposed activity is the most appropriate form of consultation. This allows us to explain exactly what is happening and gives the employee the opportunity to give their view. This method of consultation is particularly suitable on small sites where there are a small number of workers. This can be done by using informal means of communications such as discussing the health and safety risks, control measures, how their work will affect others or how they might affect you over a tea/coffee before work starts.

Open Door Policy

Many workers would like to raise concerns direct with the site management but feel that their concern will not be taken seriously or will lead to them being labelled as a troublemaker. An open door policy where workers are invited to speak directly with members of the site management team and their concerns are taken seriously is an alternative means of consultation you may wish to choose.

This method is particularly suitable on small and medium sites where the site management is readily available and known to everyone on site.

5.5 The Consultation Process

When risk assessments are prepared all employees who may be affected shall be made aware of the results of assessment, particularly the likely risks and preventative measures, and consulted prior to the commencement of work covered by the risk assessment. Proof of this consultation must be recorded on a Training Record Sheet (for Risk Assessments). In addition, Daily Activity Briefings/POWRA can be used as a reminder/refresher of the method statement and risk assessments for the work to be carried out.

Emergency procedures, including details of responsible persons, are required by the Management Regulations. Employees must be consulted regarding these arrangements. This consultation should be carried out during site induction and whenever if the arrangements change or employees' work involves separate procedures.

Persons appointed to assist ALIGN in such meetings are generally Health and Safety Advisers, Appointed Lifting Persons, Site Safety Supervisors, COSHH Controllers, Lifting Supervisors, Lifting Planners, Temporary Works Co-ordinators, First Aiders, Fire Wardens/Marshals/Fire Safety Coordinators, Incident Investigators and MEWP Supervisors.

Where training needs are identified the employees concerned shall be consulted regarding planning and organisation of such training. Details of consultation shall be minuted.

5.6 Specific Legal Requirements

A number of regulations specifically require the provision of information, instruction and training to employees. The Consultation Regulations require that employees are also consulted in addition to receiving information, instruction and training. The following apply to our operations and shall be subject to consultation:

5.6.1 Information, Instruction and Training

- Relevant parts of the H&S Plan.
- Any risks to health and safety, the preventive and protective measures and the emergency procedures to be adopted for our work activities or that of others.
- First Aid arrangements: including facilities, responsible personnel and where the first aid equipment is kept.
- Measures to be taken in connection with Safety Signs.

- Information about any risk assessments, method statements or COSHH assessments that need to be followed.
- Results of any COSHH assessments.
- Weight of loads for employees undertaking manual handling, e.g. the heaviest side of any unevenly balanced load.
- Information about display screen work for operators and users.
- Information where exposure to noise is likely to reach or exceed 80 dB (A) including exposure, possible damage, action to minimise risk, details of provision, use and maintenance of ear protection, when to seek medical advice and employees duties.
- Risks and precautions where there is a possible exposure to asbestos or lead.
- Information to employees working with ionising radiation to enable them to comply with regulations, information on health hazards and precautions and additionally, in the case of female employees the importance of informing the employer if they become pregnant.
- Conditions and methods of use of work equipment including actions to be taken in any foreseeable abnormal situation.
- Purpose and use of personal protective equipment (PPE) including the risks that PPE will avoid or limit and methods of keeping PPE effective.
- Safety cases prepared for work under the Railway and Other Guided Transport Systems (Safety) Regulations 2006.

Information Only

- Health and Safety information in the form of an approved Health and Safety Law poster prominently displayed and an approved leaflet given to employees.

6 Documentation

The following shall be retained as health and safety records:

- Training record sheet - Record of Induction and Toolbox Talks
- Training record sheet - Record of Method Statement and Risk
- Training record sheet - Record of Black Hat Meeting
- Training record sheet - Record of Daily Activity Briefings
- Training record sheet - Record of Point of Work Risk Assessments
- Assessment Means of Consultation
- Minutes of Consultation Meetings
- Site Specific Health and Safety Consultation Poster

7 Appendices

7.1 Appendix 1: Black Hat Briefing Agenda

Black Hat Briefing Agenda

Purpose:

- To agree the work activity plan for each trade for the coming shift/works
- To clarify the materials logistics plan for the coming shift
- To identify any issues and agree actions to resolve
- To brief attendees on current hazards and health and safety information
- To record the meeting either via notes or photograph of marked up diagrams/whiteboard

Responsibility:

- Project Lead to appoint Senior Staff members to implement at site level. For the early works the project lead has appointed the Works Manager to implement this at site level

Attendees:

- ALIGN site/package management
- Black Hat Supervisors from all Contractors

Duration:

- Approx. 20 minutes (flexible)

Typical Generic Agenda:

1. Review of previous Black Hat briefing and where necessary update plan
2. Overview of unsafe act/unsafe condition for previous shift:
 - a. Unsafe act / unsafe condition cards (SSOR) issued in previous shift
 - b. Review of breaches or exceptional performance
 - c. Accident/Incidents/Near Misses
 - d. Safety Inspection actions
3. Plan for the shift:
 - a. Activities to be completed
 - b. Plant and equipment to be used
 - c. Number of operatives in working areas
 - d. Interface with other trades
 - e. Expected output for the shift
 - f. Tests/evacuations
4. Significant hazards:
 - a. Highlight and discuss hazards for the shift
 - b. Adverse weather conditions
 - c. Review previous shift hazard board and update as necessary
5. Logistics:
 - a. Access and egress routes for operatives
 - b. Horizontal and vertical material distribution and waste removal
 - c. Scheduled deliveries – off loadings and storage details
 - d. Traffic management for the shift
6. Any other business:
 - a. Significant meetings
 - b. Enforcement Visits

7.2 Appendix 2: Black Hat Guide

Instruction	Comment
Project Lead* to designate Black Hat Lead	*Project Lead to designate Senior Staff members to implement at site level
Project Lead* to allow diary space for Black Hat briefings	*Project Lead to designate Senior Staff members to implement at site level
Black Hat to visit daily activities and risk assessments (incl. previous day items)	Site visit and/or internal meeting with Black Hat Safe Start Briefing (Daily Activity Briefing) being revised as well as RAMS when relevant.

Project Lead* to chair & Black Hat to attend meeting and share/plan activities	*Project Lead to designate Senior Staff members to implement at site level. Refer to " Black Hat Agenda "
Project Lead* to update the Hazard Board, identified at the Black Hat meeting	*Project Lead to designate Senior Staff members to implement at site level
Black Hat to carry out daily Black Hat Start Briefing	Refer to " Black Hat Start Briefing " and " Tool Box Talk "
Project Lead* & Black Hat to carry out periodic inspections	*Project Lead to designate Senior Staff members to implement at site level

7.3 Appendix 3: Daily Activity Briefing Agenda

Purpose:

- To agree the work activity plan for each trade for the coming shift for all works by all

Contractors:

- To clarify the material logistics plan (deliveries and collections) for the coming shift
- To identify any issues and agree actions to resolve and prevent reoccurrence
- To brief ALL Workers on current hazards and health and safety information
Environmental issues, Quality Issues, U&A's and any issues relating to Stakeholder/Community issues.
- To record the briefing upon an attendance register

Responsibility:

- To be delivered by all Contractors Managers/Supervisors to ALL WORKERS under their direction (including sub-sub-contractors)

Attendees:

- ALIGN site/package management to verify the effectiveness of such briefings, at least upon a regular basis.
- Nominated Black Hat Supervisors from all Contractors
- ALL WORKERS

Duration:

- Approx. 10 minutes (flexible)

Typical Generic Agenda:

1. Review of previous Daily Activity Briefing and where necessary update RAM's/Task Briefings
2. Overview of unsafe act/unsafe condition for previous shift and implemented remedial action and controls to prevent reoccurrence:
 - a. Unsafe act / unsafe condition cards issued in previous shift
 - b. Review of breaches or exceptional performance
 - c. Accident/Incidents/Near Misses
 - d. Safety Inspection actions
3. Plan for the shift
 - a. Activities to be completed (competence of work force)
 - b. Plant and equipment to be used (competence of operators)
 - c. Number of operatives in working areas (sufficient for scheduled works)
 - d. Interface with other trades and additional control measures
 - e. Expected output for the shift
 - f. Tests/evacuations
4. Significant hazards
 - a. Highlight and discuss hazards for the shift and reiterate approved control measures.
 - b. Adverse weather conditions and possible affects upon the scheduled works
 - c. Review shift hazard board and ensure all workers are aware of current hazards and site restrictions.
5. Logistics
 - a. Access and egress routes for operatives to their place of works
 - b. Horizontal and vertical material distribution and waste removal
 - c. Scheduled deliveries – off loadings and storage details
 - d. Traffic management for the shift
6. Any other business
 - a. Significant meetings
 - b. Enforcement Visits

7.4 **Appendix 4: Record of Daily Activity Briefing**

RECORD OF DAILY ACTIVITY BRIEFING

Project Name:	Date of Briefing:
Relevant Method Statements and Risk Assessments:	Reference/Revision No. and Status:

This daily activity briefing must be carried out before work commences on site.

Activities: (including details of the organisation undertaking the activity)	
Hazards, risks and controls: (emergency actions)	
Personnel: (including details of sub-contractor's supervision)	

Feedback/Suggestions: (including Lessons Learnt and Good Practices from previous work activities)	
---	--

Attendance Record

I acknowledge receipt of the daily activity briefing detailed above and confirm that I have been briefed on
the risk assessments and method statement for the task.

Name	Signature	Employer (if not ALIGN)

7.5 Appendix 5: Point of Work Risk Assessment (POWRA) Guidance

Purpose:

The Point of Work Risk Assessment (POWRA) should be seen as the last check prior to Workers commencing allocated works at each different work location during the working shift. In some instances it is foreseeable that Workers will be subject to more than one POWRA during the working shift.

The POWRA does not replace the Approved RAMs, Task Location Briefings or Daily Activity Briefing- the aforementioned all form part of ensuring all Workers remain safe and free from ill health whilst undertaking their allocated duties.

The POWRA will review and ensure as a minimum the following are considered:

- To ensure all workers are familiar with the approved RAMs for the task they are appointed to undertake
- To ensure all workers are trained and competent for the task they are appointed to undertake
- To ensure all workers are issued with and trained in the use of the correct PPE for the task.

- To ensure all plant and equipment being used to complete the task are fit for purpose and in good working order
- To ensure all scaffolds/mobile access equipment and platforms are erected, handed over and tagged within date.
- To ensure all open edges are protected with collective protection
- To ensure suitable and effective segregation is erected and maintained to the works area.
- To ensure safe access and egress is established and maintained to all work locations.
- To ensure trip hazards (i.e.: cables, rubbish, materials etc.) are managed to reduce the risk of trips and falls.
- To ensure if lifting operations take place that approved lift plans are in place, plans have been communicated and a safe system of works is maintained.
- To ensure where flammable products are to be used within the works, that suitable safety measures have been implemented.
- To ensure fire and emergency arrangements will not be affected by the scheduled works with fire provisions accessible and escape routes clear of obstructions.
- To ensure housekeeping is maintained to a high standard.
- To ensure noise exposure is controlled for the workers and others
- To ensure dust emissions are controlled at source
- To ensure where applicable a Permit to Work has been raised and personnel have been fully briefed upon the associated control measures.

Responsibility:

- To be delivered by all Contractors Managers/Supervisors to ALL WORKERS under their direction (including sub-sub-contractors)

Attendees:

- ALIGN site/package management to verify the effectiveness of such briefings upon a regular basis.
- Black Hat Supervisors from all Contractors in charge of each work place.
- ALL WORKERS (including sub-sub-contractors).

Duration:

- Approx. 10 minutes (flexible)

7.6 **Appendix 6: Health & Safety Consultation Poster**

Health and Safety Consultation Poster	
Every construction worker has a right to work in a healthy and safe environment where the risks are properly controlled. All workers on this site have the opportunity to raise any health and safety issues through the following Consultation methods.	
<< Insert Name of Project>> ALIGN, the Principal Contractor, has committed to carrying out effective consultation with everyone on this project. ALIGN has selected the methods of consultation indicated below as appropriate for this project.	
PROJECT LEVEL	
Methods of Consultation	Methods Selected

Consultation with Workers

Document no: 1MC05-ALJ-HS-PRO-C001-000013

Revision: Rev02

1.	Workforce Consultation Meetings	☐
2.	Induction	☐
3.	Through one or more representatives	☐
4.	Trade Union appointed safety representatives (where applicable)	☐
WORKGANG LEVEL		
Methods of Consultation		Methods Selected
1.	Toolbox talks	☐
2.	Through one or more representatives	☐
3.	Black Hat Meetings	☐
4.	Method Statement/Daily Activity Briefings	☐
5.	Point of Work Risk Assessment	☐
INDIVIDUAL LEVEL		
Methods of Consultation		Methods Selected
1.	Directly with each employee	☐
2.	Open Door Policy	☐
<< Insert Name of Contact>> If the method of consultation is not appropriate or your views are not being taken into account, please contact << Insert Name of Contact>> << Insert phone number of Contact>>		